

HOUSE No. 1496

The Commonwealth of Massachusetts

PRESENTED BY:

Daniel M. Donahue

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to residential assistance for families in transition (RAFT).

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Daniel M. Donahue</i>	<i>16th Worcester</i>	<i>1/17/2025</i>

HOUSE No. 1496

By Representative Donahue of Worcester, a petition (accompanied by bill, House, No. 1496) of Daniel M. Donahue that the Department of Housing and Community Development administer residential assistance for the Families in Transition Homelessness Prevention Program. Housing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1317 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to residential assistance for families in transition (RAFT).

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 23B of the General Laws, as appearing in the 2018 Official
2 Edition, is hereby amended by inserting after section 30 the following section:-

3 Section 31. (a) Subject to appropriation, the department of housing and community
4 development shall administer the residential assistance for families in transition homelessness
5 prevention program for households whose incomes are at or below area median income and who
6 are at risk of homelessness, eviction, foreclosure or utility shut-off within the next 12 months.
7 For the purposes of this program, to receive cash benefits or other services, a household need not
8 be subject to summary process under chapter 239 nor have received a shut-off notice from a
9 utility company. Risk of eviction, foreclosure and utility shut-off may be determined by certified
10 statements from the landlord, mortgage holder, utility company, or the applicant household

11 verifying outstanding rent, mortgage or utility costs and the household's current inability to pay
12 said fees. The department shall set aside 50 per cent of the funds for households with incomes
13 not greater than 30 per cent of area median income, but nothing in this section shall be construed
14 so as to create a purpose in delaying awards to higher income households. Eligible households
15 shall include, but not be limited to, families with children under the age of 21, elders, persons
16 with disabilities, and unaccompanied youth. Services and cash benefits under the program shall
17 be made available to households for the prevention of the loss of subsidized or unsubsidized
18 housing. Cash benefits for arrearages shall not exceed the actual liability, but cash benefits shall
19 not be limited to arrearages. Eligible households may receive benefits for short-term going-
20 forward rental or utility payments to offset future costs, and to pay for other expenses that
21 otherwise would leave the household at risk of homelessness, up to a total benefit equal to 12
22 months' rent. Lest the program act regressively in areas of opportunity, any budget established
23 subsequent to this Act that establishes a cap on total benefit in dollar amounts shall be override
24 the cap established in this section only to the extent that cap is greater than 12 months' rent. Any
25 regional administering agency shall be subject to the requirements of Chapter 30B. In
26 administering the program, the department shall coordinate with the department of transitional
27 assistance, member agencies and offices of the Massachusetts interagency council on housing
28 and homelessness and the agencies contracted to administer the residential assistance for families
29 in transition program on behalf of eligible households served by those agencies and offices so as
30 streamline the application process, provide additional support services, and better promote
31 upstream homelessness prevention and housing stability.

32 (b) The department shall annually, on or before December 31, issue a report on the rental
33 and mortgage arrearage assistance program created by this section. The report shall be submitted

to the House and Senate Committees on Ways and Means; the Joint Committee on Housing; and the House and Senate Clerks. The report shall include but not be limited to the following information:

(i) the referral source for each household and number of households referred by said source;

(ii) the number of applications requested, the number of applications completed, the number of applications approved;

(iii) the number of applications rejected and the reasons for denial;

(iv) the household income and demographic information for each qualifying household and its members. This information shall be provided by zip code and cumulatively;

(v) the monthly rent or mortgage liability for each qualifying household and the amount of each arrearage payment; and

(vi) the housing status of each qualifying household at six, twelve, and twenty-four months after receipt of services or cash benefits.

SECTION 2. Chapter 66 of the General Laws is hereby amended by inserting after Section 21 the following section:-

Section 22. Documents pertaining to rental assistance. In order to ensure the just, efficient and discrimination-free administration of housing services, a document made by the Department of Housing and Community Development or its agent, whether a Regional Administering Agency or other person or entity, pertaining to rental assistance in any form described under Chapter 23B or Chapter 151B Section 4, shall be considered a public record under this chapter to

55 the extent it identifies the lessor, owner, manager or other recipient of funds, the precise address
56 at which housing services were rendered, and the amount and dates of such assistance, provided
57 however that the names of renters, tenants, subtenants, and other occupants of the premises at
58 time of such assistance shall not be public records.